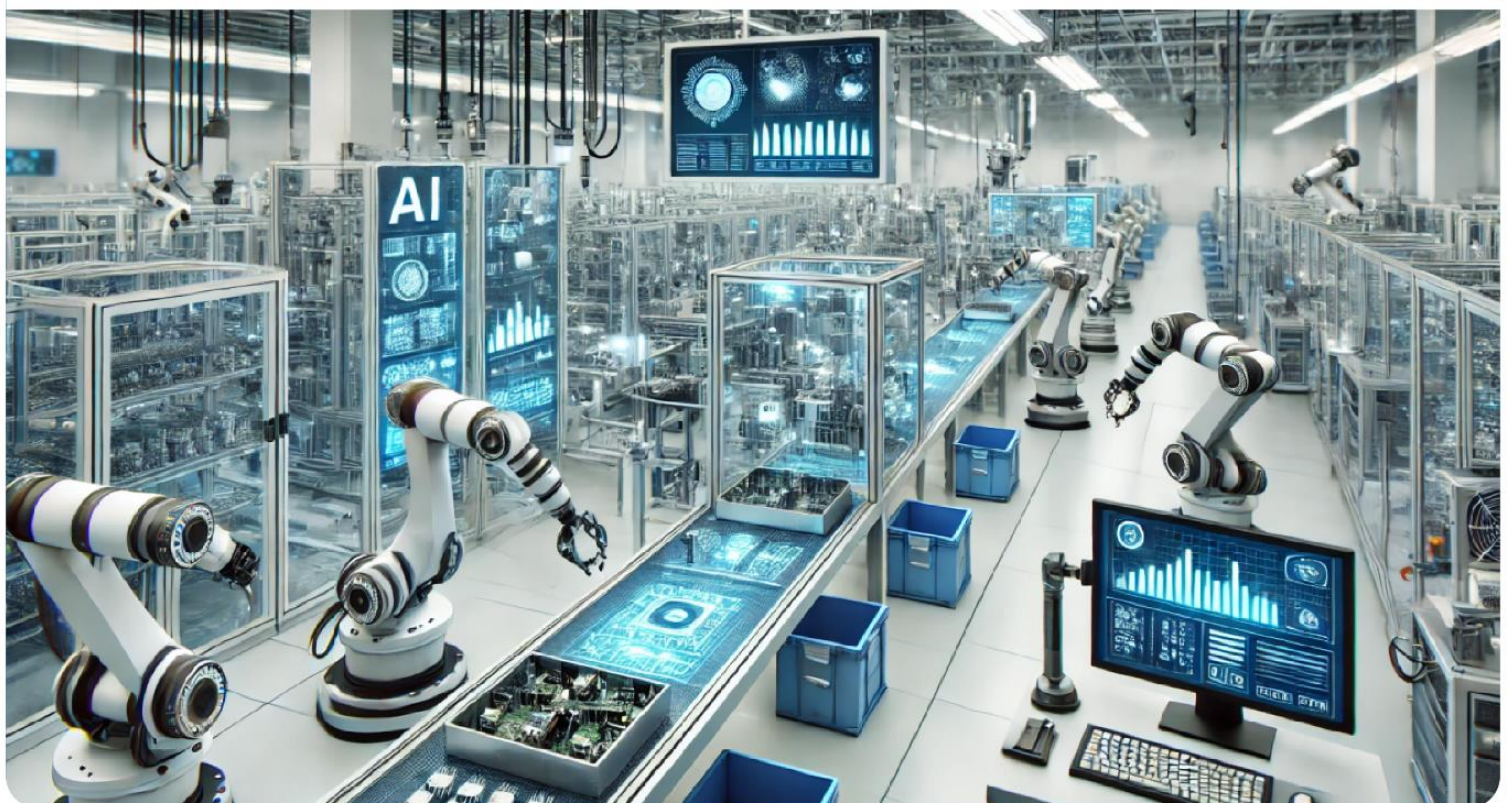


STUDY GUIDE ILC



Agenda 1 : Assessing the Impact of Digitalisation and Artificial Intelligence on Employment Practices

Agenda 2 : Reviewing Global Standards for Whistleblower Protection in the Workplace





Letter from R&D

Dear Delegates,

The Department of Research & Development of MUNSociety MPSTME welcomes you to the 11th edition of Mumbai MUN! Our department upholds a proud tradition of facilitating meaningful discourse on national and international matters, encompassing both historical events and current issues.

We are primarily tasked with formulating agendas and preparing comprehensive study guides. We have created detailed and engaging guides aimed at providing valuable resources for all delegates.

This year's theme, "Redefine the Norm," challenges us to think beyond conventional solutions and embrace innovative approaches to global challenges. In a rapidly evolving world, traditional methods often fall short of addressing contemporary issues. We believe that transformative change requires the courage to question established practices and the creativity to envision alternative pathways.

With this theme in mind, we have thoroughly picked agendas and committees that demand fresh perspectives, challenge conventional thought, and encourage innovative approaches to problem-solving. In this study guide, you will find well-researched background information to help you prepare for your committee sessions.

We, as facilitators, aim to provide you with the intellectual arsenal to combat any challenges that you might face and make the most of your Mumbai MUN experience.

We look forward to your active participation and contributions during Mumbai MUN and are confident that, together, we can make this conference a memorable and enriching experience for all.

Best wishes,

Department of Research & Development,
MUNSociety MPSTME.

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COMMITTEE OVERVIEW

Mandate

The original purpose for the existence of the International Labour Organisation (ILO) is to promote social justice in systems of global work. It is the world's oldest organisation dedicated to international labour welfare and the standardisation of worker-centric law. While being a specialised agency of the UN, it predates the UN itself, having been formed in 1919 as part of the Treaty of Versailles. It has held great influence in key events in history—such as the Great Depression, and in ending the Apartheid—and today, it stands embodying its original mission of universal and lasting peace by standing up for an ethical and productive framework for fair globalisation by protecting worker rights.

The ILO has its own constitution that defines its functioning and methods¹. The organisation functions as a tripartite and focuses on solving issues via an agreement between all involved parties.

The issues that relate to the ILO relate to upholding social justice, hardship, privatisation and unrest due to conditions of labour. Under the same guidelines, it also gets involved in situations of failure in government systems to ensure humane labour law.

The International Labour Conference (ILC) is the annual conference of governments, employers and employee representatives of member states. This conference formalises labour standards and serves as a forum to discuss key social and labour questions. International organisations, both governmental and others, attend as observers and can be called on for perspectives. In urgent conditions, the conference may be called more than once each year.

Structure and Functioning

The ILC is attended by two government delegates and one delegate for each, an employer and an employee representative. The ILO as a whole, functions in a similar fashion, with three major parties represented in the organisation, being the only one of its kind.

It is composed of the constituency of these parties from each of the 187 member states, which is what the discussion group at this conference will comprise. The ILO's functioning is composed of three major stages and groups, all of which culminate and are put into place at the ILC. The yearly group generally elects leaders at the ILC for each party (which this conference will consider having done already). It makes the decisions that the ILO will then act on, which the executive and secretariat will then implement. This executive body is the Governing Body, which is led by a Director-General, who leads the secretariat—the International Labour Office.



Structure of the International Labour Organisation
Source: The ILO

The ILC has a set group of functions to fulfil:

1. Crafting and adoption of international labour standards (Conventions and Recommendations)

¹Key document - ILO Constitution. (n.d.).

https://normlex.ilo.org/dyn/normlex/en/?p=1000:62:O::NO:62:P62_LIST_ENTRIE_ID:2453907:NO

2. Supervision of the application of standards through its Committee on the Application of Standards
3. Approval of the biennial programme and budget of the Organization and the allocation of expenses among Member States
4. Election of the members of the Governing Body
5. Admission of new Member States which are not members of the United Nations
6. Adoption of amendments to the Constitution
7. Discussion on the reports of the Director-General and the Chairperson of the Governing Body
8. Adoption of resolutions that provide guidelines for the ILO's general policy and future activities, that will guide the Governing Body.²

Expectations of this Conference

This committee will focus heavily on function numbers 6 through 8 as the committee proceeds. It is expected that the delegate of each group will represent the collective of their group rather than only their position and portfolio based on individuality. The individuality of the portfolio is based on expertise, and to position a perspective formation on activities not linked to stance on the general domain area. The structure we will follow is slightly divergent from the official structure of 2-1-1 to 1-1-1 to accommodate more viewpoints and make use of a more balanced structure.

²The International Labour Conference at a glance. (2024, May 2). International Labour Organization.
<https://www.ilo.org/resource/other/international-labour-conference-glance>

Agenda 1: Assessing the Impact of Digitalisation and Artificial Intelligence on Employment Practices

BACKGROUND

What is Digitalisation?

Throughout the course of history, no event has been as influential and impactful as the Industrial Revolution. Many people view the Industrial Revolution as a singular event, when in fact the revolution was a period that spans from 1765 till today. This period is split into four parts, each characterised by its unique advancements and innovations.

The most well-known of the four is the first industrial revolution. This period in history is characterised by the use of mechanisation and the introduction of the steam engine. It was because of this, that agriculture was replaced by industry as the backbone of the economy.

The second phase of the Industrial Revolution about a century later in 1870, saw in particular, the advent of the effects of electricity, gas and oil. Some notable inventions like the internal combustion engine were invented in this period and the century also saw the rise of steel manufacturing, chemical synthesis and new forms of communication such as telephone and telegraphs.

The third industrial revolution began in the late 1960s, which saw the use of nuclear power as a potential source of energy. The third industrial revolution also saw the rise of electronics, telecommunications and the computer as a way to study new and growing fields such as space expeditions, research, and biotechnology.

Digitalization, often termed the fourth industrial revolution, has been characterised by breakthroughs in several fields, such as AI, robotics, the IoT, big data, quantum computing, 3-D printing, nanotechnology, biotechnology,

materials science, autonomous vehicles, and energy storage. The rate of these breakthroughs has been increasing at an exponential pace and their effects have been affecting every industry globally. Similar to the first industrial revolution, with the advent of the steam engine, digitalization is expected to cause several social and economic changes. These changes involve the relationship between the labourers and the machines, and will severely affect the bargaining power of labour unions.



Digitalization

Source: MYND Intelligence Automated

Recent developments in data collection and processing have shown a qualitative and quantitative leap in digital transformation. Furthermore, recent trends have led to the development of an ecosystem of interdependent digital technologies.

Technological impact on jobs has been a topic of debate for several decades, however, these debates mainly revolve around a notion of 'technological alarmism', namely widespread concerns of technological change, in the form of robotics and Artificial Intelligence (AI), taking over peoples' jobs and livelihoods, as it is estimated that around half of all jobs, across 70 occupations, are susceptible to replacement by technology (these predictions are likely to overestimate). These dynamically changing technologies will likely render several jobs and skills obsolete, resulting in mass reskilling or

upskilling. The OECD estimates that 14% of all jobs will be replaced over the next ten to twenty years.

A study by De Vries and colleagues (2020), showed that increased automation led to positive effects in jobs that consisted of complex problem-solving, analytical thinking and creativity, while adversely affecting jobs that consisted of routine manual tasks. Throughout the ten years between 2006 and 2016, OECD countries have been observing an upward trend, growing by about 7% as digitalization resulted in creating more jobs than it replaced. This was mainly a result of globalisation, as increased use of machines led to an increase in product quality, which resulted in new markets being opened and new jobs being created. It is important to note that four out of ten of these jobs were digitally intensive.³

AI in the Workplace

Technologies such as big data and cloud computing have led to advancements in fields such as machine learning, which has drastically increased the versatility and effectiveness of Artificial Intelligence.

AI is a growing field that has seen great uptake in fields such as transport, agriculture, finance, marketing, advertising, science, healthcare, criminal justice, security and the public sector as well as AR and VR. Additionally, human-AI teams are more efficient and are less likely to make errors while working, as AI are capable of doing complex tasks involving predictions and big data.⁴

Distance Working

With the pandemic in full swing, distance working became the new norm. However, remote work can come with its own set of challenges, legal as well as moral. These legalities deal with mainly employee and employer rights and considerations.

Employers in particular need to keep certain regulations and considerations in mind when it comes to remote working, under the Fair Labour Standards Act (FLSA), employers are required to pay non-exempt employees a minimum wage and overtime for hours worked over 40 in a workweek. This can be problematic to track in a remote environment. Additionally, an employer also needs to account for worker safety and needs to ensure that any injury reported is work-related. This also extends to insurance, as workers who do not have access to a safe work environment may result in legal action against the employer. Employers must also account for data privacy concerns, ensuring that sensitive information does not get leaked in the event of a data breach.

Employees need to account for tax implications while working remotely. Workers also have a right to privacy and the employer must ensure that the employee's privacy is not violated. The employee can also be eligible for any benefits that the employer may provide, and is entitled to compensation in case of a work-related injury. Intellectual property is also a challenge for employees and employers alike. Therefore employers should establish clear policies and procedures to protect intellectual property and have protocols for data breaches. Employees

³Impact of digitalization and artificial intelligence as causes and ... (n.d.).
https://ficsa.org/fileadmin/user_upload/Impact_of_Digitalization_and_AI_-_Implications_for_the_international_civil_service_-_Final_report.pdf

⁴Impact of digitalization and artificial intelligence as causes and ... (n.d.).
https://ficsa.org/fileadmin/user_upload/Impact_of_Digitalization_and_AI_-_Implications_for_the_international_civil_service_-_Final_report.pdf

should also be informed about protecting sensitive information and be trained in this regard. It is crucial that employees understand their rights to privacy, and the employer should be responsible for the protection of sensitive information.⁵

EFFECTS

Workforce Transition

In the age of rapid technological advancement, the fear of job displacement by machines – and the impact of AI on the economy and the workforce – has become a common concern.

Projections show that AI is set to replace 800 million jobs and reach an economic impact of \$15.7 trillion by 2030.⁶ IT professionals in particular stand at the forefront of AI implementation in the workplace, with 54% actively incorporating AI. They are closely followed by data engineers (35%), developers, data scientists at 29%, and security professionals at 26%. In May 2023, AI contributed to about 3900 job losses in the US, placing AI as the 7th largest contributor to job replacement.

Similarly, automation has been widely discussed in relation to its impact on job loss because of its

very nature: technology replaces human input. Although automation is likely to alter task profiles within jobs, its impact on job loss will be less severe than perceived, ranging from 10% to 15%.⁷ In general, the employment impact of automation is stronger in manufacturing than in services because of its higher share of routine tasks and less reliance on tasks such as communication and customer service. Although automation technologies such as robots are already a common feature in manufacturing, they are only beginning to become more widespread in services because of the less structured work environment and less repetitive work content. That said, in some services sectors such as logistics and transport, the employment impact of automation is already visible, and it is starting to emerge in others, such as banking and financial services.

Distance working, or remote work, is a flexible work arrangement, that enables the employee to work from places other than the workplace. This principle is becoming the norm throughout the industry, as diverse teams from across the globe working together may give rise to challenges.⁸ Remote work has seen rapid changes in recent years, mainly due to the COVID-19 pandemic, as companies had to adapt to new working conditions.⁹ The pandemic forced companies to use cloud-based tools and online meeting spaces.

⁵ Ali. (2024, April 23). *The legal implication of remote work for employers and employees*. Borderless HR Blog. <https://borderlesshr.com/blog/the-legal-implication-of-remote-work-for-employers-and-employees/>

⁶ SEO.ai. (2023, January 17). *AI replacing jobs: Statistics and insights*. <https://seo.ai/blog/ai-replacing-jobs-statistics>

⁷ European Foundation for the Improvement of Living and Working Conditions. (n.d.). *The employment impact of digitalisation*. <https://www.eurofound.europa.eu/en/employment-impact-digitalisation>

⁸ VirtualVocations. (2024, February 12). *AI and remote work: Exploring how Artificial Intelligence could transform telecommuting*. Remote Work From Home Job Search Tips and Advice. <https://www.virtualvocations.com/blog/remote-working-tips/ai-and-remote-work-exploring-how-artificial-intelligence-could-transform-telecommuting/#:~:text=Automating%20Routine%20Tasks,convenient%3B%20it%27s%20a%20game%20change>

⁹ Institute of AI Studies. (n.d.). *The impact of AI on remote work and collaboration*. <https://www.instituteofaistudies.com/insights/the-impact-of-ai-on-remote-work-and-collaboration>

Remote working had notable drawbacks and benefits, which paved the way for the concept of hybrid working.



Remote Work
Source: ActivTrak

Hybrid working is a concept which is a blend of remote working and in-office working, which offers the best of both worlds. This model is known for boosting worker productivity and overall effectiveness. Along with remote and hybrid work becoming more mainstream, AI too has become more commonplace.

Over ten years (2006-16), employment rates in most OECD countries had been on an upward trend, and grew by nearly 7% (OECD, 2019d) as digitalization created jobs at a faster rate than those that have been replaced, and greater opportunities are opening up to participate in the labour market for many people who were formerly excluded. Technological change and globalisation contribute to this – by lowering the costs of production, boosting the quality of products, and opening up new markets – all of which lead to additional demand and boost productivity and, therefore, further job creation.

Reskilling and Upskilling

The labour market on the other hand has been more polarising in comparison, with a drastic growth in high-skilled jobs, a slight growth in low-skilled jobs, but a drop in middle-skilled ones. Manufacturing and agricultural employment are expected to see a drop in

employment rates, whereas jobs that require technical and scientific expertise are predicted to see an increase. This is a worrying trend as 6 out of 10 adults don't have basic ICT skills, according to a study by the OECD. This digital divide also exists between different population groups (women, older, lower-educated, unemployed or inactive, employed in low-skill jobs).

According to the ITU, substantial divides persist between countries, with nearly 87% of people using the internet in developed countries in 2019, as compared to 47% in developing countries, and also evident within countries. Men, urban residents and young people are more likely to be online than women, rural dwellers and older people. The digital gender gap, when measured in terms of internet penetration, is relatively small in developed countries, more pronounced in developing countries and substantial in least developed countries. This stems from insufficient connectivity, the cost of connection and a lack of adequate digital skills.

With this in mind, a study by the Chartered Institute of Personnel and Development shows that automation has led to a direct increase in product quality, as machines reduce overall costs while making up for the lack of skill in labourers. This enables companies to keep up with competitors in their respective industries. Another benefit of using machines is that it improves working conditions, and worker safety drastically.

Efficiency and Productivity

Deloitte's 2023 Global Human Capital Trends Report highlights that artificial intelligence and

machine learning will contribute to a 37% increase in labour productivity by 2025.¹⁰

AI is expected to improve workplace productivity in two ways, which are human automation and machine automation. Human automation is when AI carries out tasks that are done by humans, whereas machine automation deals with machine labour. Human Resources in particular has seen an uptick in AI applications, as about 40% of HR functions use artificial intelligence leading to businesses beginning to see AI as a valuable tool. According to IBM, 77% of businesses are in the process of integrating AI or are actively exploring the possibility of implementing AI. This hints at the possibility that businesses, especially larger ones, will become less dependent on human collaboration.

Artificial Intelligence also has the potential to act as a productive tool, especially when it comes to telecommunications. Artificial intelligence can play a critical role in automating routine tasks, team building, bridging language gaps, project management etc. AI can also be helpful in learning and development, as AI can fill in any gaps in knowledge that employees might have, making them more productive.

For recruitment processes, traditional screening and selection that depends on human intervention to evaluate candidate information is the most expensive and discouraging hiring process. Artificial intelligence can accelerate the hiring procedure, produce an outstanding candidate experience, and reduce costs. AI can not only automate the evaluation of hundreds of

resumes on a large scale in a short period, but it can also automatically classify candidates based on the job description provided.

Ethical Implications

While AI's reliance on data (including sensitive information) can raise concerns among regulators and should be addressed carefully, its adoption can be beneficial for corporate compliance. For example, AI-based Robotic Process Automation can increase reporting consistency and accuracy by about 80%, according to Deloitte, while lowering the number of employees who have access to sensitive information.¹¹

On the other hand, there are numerous ethical concerns around AI privacy which focus on collecting, storing, and using employee data. AI systems can analyse vast amounts of personal and professional information, which must be properly protected to avoid privacy violations, unauthorised access, and misuse.¹²

The use of AI in hiring and promotion processes raises concerns about algorithmic bias, where decisions may inadvertently reflect existing societal biases if the training data is flawed or unrepresentative. Such discrimination can lead to unfair hiring and promotion practices, particularly affecting marginalised groups.

For instance, Amazon's AI-driven hiring model, while groundbreaking, encountered a stumbling block—a propensity to favour male candidates for technical roles.¹³ This prejudice emerged from

¹⁰Deloitte. (2023). *Human capital and productivity: 2023 Global Human Capital Trends*.
<https://www2.deloitte.com/us/en/insights/focus/human-capital-trends/2023/human-capital-and-productivity.html>

¹¹iTransition. (n.d.). *AI in the workplace: Transforming business operations*. <https://www.itransition.com/ai/workplace>

¹²Harvard Business School Online. (2021, March 30). *Ethical considerations of AI*.
<https://online.hbs.edu/blog/post/ethical-considerations-of-ai>

¹³Dixon, K. (2023, September 25). *AI bias in recruitment: Ethical implications and transparency*. Forbes.
<https://www.forbes.com/councils/forbestechcouncil/2023/09/25/ai-bias-in-recruitment-ethical-implications-and-transparency/>

the scars of historical gender imbalances within the company and the broader technology sector.

There is, however, a catch, as artificial intelligence has the potential to be used as more of a crutch rather than a tool, as many organisations are worrying that their data might be leaked. Because of AI's "plug and play" nature, many employees resort to using AI, despite protests or bans from their bosses. According to a 2023 study, 68% of employees don't disclose AI usage to their bosses.¹⁴ This problem becomes more apparent in remote working, as employees may become over-dependent on AI.

Legal Implications

As the use of AI grows exponentially in the workplace, lawmakers and policymakers globally have issued guidance, policies, and laws to govern the use of AI in the workplace, giving employers a new legal landscape to navigate. For instance, in October 2023, in the US, President Biden issued an executive order titled The Safe, Secure, and Trustworthy Development and Use of AI, requiring various government agencies to set new standards for safety and security. The order also called on developers of large-format AI systems to share safety and test results with the federal government.¹⁵

Several policies are also being introduced to regulate the use of AI in hiring, such as New York City's AI Law, which took effect in July 2023, making it unlawful for an employer to use an automated employment decision tool (AEDT) to screen candidates for employment or promotion, unless certain criteria are met.

In terms of privacy and security, The General Data Protection Regulation (GDPR) is legislation that updates and unifies data privacy laws across the European Union (EU). Its purpose is to protect individuals and the data that describes them and to ensure the organisations that collect that data do so in a responsible manner. The GDPR also mandates that personal data is maintained safely; in part, the regulation says personal data must be protected against "unauthorised or unlawful processing, and against accidental loss, destruction or damage."¹⁶

CASE STUDIES

SAG-AFTRA and WGA Strike

The Screen Actors Guild and the American Federation of Television and Radio Artists is a union that represents roughly 160,000 actors, broadcast journalists, dancers, DJs, program hosts, singers, stunt performers and voiceover artists, among other media professionals.

SAG-AFTRA chose to strike in July 2023 because of contractual disputes with production companies and streaming platforms over a range of issues such as residuals and the use of new technologies like artificial intelligence (AI). As negotiations advanced, AI became a major sticking point as the union voiced concerns over AI being used to duplicate an actor's likeness – an ongoing phenomenon that raises a variety of compensation and creative ownership dilemmas. Union members protested for proper

¹⁴Dunn, J. (2023, October 17). *The employees secretly using AI at work*. BBC Worklife.
<https://www.bbc.com/worklife/article/20231017-the-employees-secretly-using-ai-at-work>

¹⁵Morgan Lewis. (2024, July). *AI in the workplace: The new legal landscape facing U.S. employers*.
<https://www.morganlewis.com/pubs/2024/07/ai-in-the-workplace-the-new-legal-landscape-facing-us-employers>

¹⁶GDPR.eu. (n.d.). *What is GDPR?* <https://gdpr.eu/what-is-gdpr/>

compensation when their work was used to train AI¹⁷

The strike, lasting a historic 118 days, ended with SAG-AFTRA ratifying a deal with the Alliance of Motion Picture and Television Producers (AMPTP) which was signed by 78% of union members.¹⁸ Actors won pay increases, protections around the use of artificial intelligence, and streaming-based bonuses in the deal, which the union said was valued at more than USD 1 billion.



SAG-AFTRA and WGA Strike
Source: Entertainment Weekly

In parallel, the Writers' Guild of America, a Hollywood writers' union with over 11,000 members went on strike in May 2024, demanding higher royalties, mandatory staffing of TV writing rooms and safeguards to their jobs from the use of artificial intelligence (AI). They laid emphasis on using AI only as a supplement to their writing services and not as a replacement, as well as the writers' right to sue if their work is used to train AI. The union entered into an agreement with the AMPTP, after the 148-day strike, which includes

pay raises of over 12% over the next 3 years, health and pension benefits, as well as tentative plans on the regulation of the use of AI in production.¹⁹

Boeing's AI-Enhanced Design

In the wake of a series of high-profile safety incidents in 2018-2019, Boeing intensified its focus on preventing accidents and improving overall safety. The approach involves data integration to analyse extensive data from the aerospace industry, advanced modelling to identify potential hazards, machine learning to detect patterns and anomalies, and cross-functional collaboration to interpret and act on the insights generated. Boeing's safety management system collects and monitors data from internal and external sources, like design and manufacturing data, audit findings, and even repair station reports filed to flag failed and malfunctioning parts to the Federal Aviation Administration.²⁰ This system, according to Bloomberg, is integrated with AI and machine learning algorithms to detect patterns and anomalies in the data, for enhancing safety mechanisms.

However, what was intended to be a transformative approach—leveraging AI and machine learning to detect potential risks—has seemingly fallen short, culminating in a

¹⁷Meyer, D. (2024, March 18). *AI and the Hollywood strike: Why SAG-AFTRA is fighting for tech protections*. World Economic Forum. <https://www.weforum.org/agenda/2024/03/ai-hollywood-strike-sag-aftra-technology/>

¹⁸Conlon, A. (2023, December 5). *SAG-AFTRA union ratifies contract with Hollywood studios*. The Guardian. <https://www.theguardian.com/culture/2023/dec/05/sag-aftra-union-ratifies-contract-hollywood-studios>

¹⁹Writers Guild of America. (2023). *Summary of the 2023 WGA MBA*. <https://www.wga.org/contracts/contracts/mba/summary-of-the-2023-wga-mba>

²⁰Shah, S. (2023, May 24). *Boeing turns to AI to cull safety risks from mountains of data*. Bloomberg. <https://www.bloomberg.com/news/articles/2023-05-24/boeing-turns-to-ai-to-cull-safety-risks-from-mountains-of-data>

catastrophic year for Boeing in 2024, with share prices dropping by nearly 38% in this year.²¹

The disconnect between Boeing's proclaimed safety reforms and the harsh reality of its ongoing safety woes has left the company grappling with a severe loss of public trust and scrutiny over its management decisions, leading to the dismissal of a large number of company executives. AI use has led Boeing to cut over 10-15% of the workforce and enforce wage cuts and contractual changes. This has culminated in several workers' strikes, the most recent of which saw about 33,000 employees striking since September 2024.

International Longshore's Association

The International Longshore's Association is a union representing over 45,000 dockworkers across dozens of major US ports which went on a historic strike in October 2024. The strike, the ILA's first major stoppage since 1977, was very detrimental to businesses that rely on ocean shipping to export their wares or secure crucial imports. It affects 36 ports - including New York, Baltimore and Houston - that handle a range of containerized goods from bananas to clothing to cars. These ports are estimated by experts to handle more than a third of US imports and exports.²²

One of the major contributing factors to this was the point of job security in response to automation. Since cargo containerization (using standardised containers that can be transported

by ships, trains and trucks) began in the late 1950s, longshore unions have been concerned with the effect of technological change on employment.²³ Today, the unions worry that new forms of automation from generative AI will lead to job loss and more work for remaining members.

Union boss Harold Daggett said previously that employers such as container ship operator Maersk (and its APM Terminals North America) had not agreed to demands to stop port automation projects that threaten jobs.

U.S. President Joe Biden's administration had sided with the union, putting pressure on the port employers to raise their offer to secure a deal and citing the shipping industry's bumper profits since the COVID-19 pandemic.²⁴

Originally, the United States Maritime Alliance (USMX), i.e. the employer's group, offered the ILA a 50% wage increase, however, the union demanded a 70-77% increase. This reflects the increased cost of living due to inflation and the extra work their members have been doing as a result of the recent boom in shipping, wherein shippers have seen profits grow up to 800% since 2022, according to a statement from White

²¹Al Jazeera. (2024, October 24). *Boeing workers vote to reject wage deal, extend strike*. Al Jazeera.
<https://www.aljazeera.com/economy/2024/10/24/boeing-workers-vote-to-reject-wage-deal-extend-strike>

²²Baker, B. (2024, October 3). *Ship queue grows as U.S. ports dockworker strike enters third day*. Reuters.
<https://www.reuters.com/world/us/ship-queue-grows-us-ports-dockworker-strike-enters-third-day-2024-10-03/>

²³Kollock, C. (2024). *Why did tens of thousands of dockworkers strike?* Rutgers University.
<https://www.rutgers.edu/news/why-did-tens-thousands-dockworkers-strike>

²⁴BBC News. (2024). *Dockworker strike disrupts supply chains at U.S. ports*.
<https://www.bbc.com/news/articles/cn8jxnn76qwo>

House press secretary Karine Jean-Pierre.²⁵This short yet lucrative, 3-day strike culminated in a tentative agreement between the ILA and USMX, stating a wage increase of 62% over the next 6 years.

Unfortunately, given the substantial demands of the ILA, these wage increases may lead large

employers to hire fewer workers or even lay off existing employees. As dockworkers experience layoffs or reduced hiring, job security diminishes. This uncertainty may lead workers to push even harder for higher wages and better conditions, leading to a cycle of job insecurity. This may be exacerbated by the further advent of AI and automation in the manual sectors.

²⁵Baker, B. (2024, October 1). *U.S. East Coast dockworkers head toward strike after deal deadline passes*. Reuters. <https://www.reuters.com/world/us/us-east-coast-dockworkers-head-toward-strike-after-deal-deadline-passes-2024-10-01/>

Agenda 2: Reviewing Global Standards for Whistleblower Protection in the Workplace

INTRODUCTION

Over the course of the past couple of decades, numerous countries have adopted new policies and constituted laws to protect whistleblower rights to ensure that their safety, anonymity and social identity are preserved.

Whistleblowing involves lawfully revealing and reporting a given company or organisation's malfeasance to an authorised recipient (defined by nations and companies in their respective policies), through a systematic and secure procedure. Whistleblowing is a tool which can be exercised by any worker irrespective of their background. Essentially this broadly promotes an efficient model for the company's employees, consequently ensuring that there is a safe socio-professional environment with lawful practices.

The concept of whistleblowing advocates stimulating an archetypal corporate, business or organisational infrastructure. Furthermore, it urges the idea of getting the "right information" to the right people.

Whistleblowing is seen as a virtuous act since it is intended to report or correct any misconduct done by a company. Whistleblowing often converses with the dignity and social identity of the organisation, employer, and employee so it is a very sensitive area to touch upon.

Misuse of such a tool, including the feasibility and accessibility to exercise it to settle personal grievances, managerial disagreements, etc. causes this tool to be a rather professionally discouraged outcome.

Albeit, among such cases, the discernible perspective from either end of the parties may substantially vary. Understanding the depths of the problem, whistleblowing cases often counter-target the employee who raised a concern, and thus as a result, the employees face issues with regard to credibility, a stain on their social identity, and the safety of their economic future. Subsequently, deliberating over and reassessing the standards for Whistleblowers' protection in this generation is a much-urged challenge to overcome.

BACKGROUND

What are Whistleblowers?

Whistleblowing is the practice of disclosing an individual or organisation's illegal or immoral conduct. A whistleblower is anyone who has and reports insider knowledge of such illegal, illicit, and fraudulent activities occurring in an organisation. Whistleblowers can be employees, suppliers, contractors, clients, or any individual who becomes aware of dubious business activities. They may release information to company officials or a large governing or regulating body.²⁶

Importance of Whistleblowers

Whistleblowing is regarded as one of the most efficient and successful methods for identifying and stopping wrongdoing in the public and private sectors, as was previously indicated. In addition to saving millions of public dollars with the use of the False Claims Act (FCA)²⁷, and enhancing private sector operations,

²⁶Service, G. D. (2015a, January 28). *Whistleblowing for employees*. GOV.UK. <https://www.gov.uk/whistleblowing>

²⁷*What is the false claims act?*. National Whistleblower Center. (2021, April 19). <https://www.whistleblowers.org/protect-the-false-claims-act/?gad>

whistleblowers' disclosures have been crucial in uncovering wrongdoing, fraud, and misconduct. Overbilling and providing substandard services or products have consistently been a drain on taxpayer money, and studies suggest whistleblowers are more effective at exposing the frauds in question rather than professional auditors.

Oftentimes the first to discover and report instances of fraud, whistleblowers have proven themselves to be invaluable in the detection of crime and enforcement of various laws. In a 2007 study conducted by PricewaterhouseCoopers, it was found that professional auditors only detected 19% of fraudulent activities at private corporations, while whistleblowers detected and exposed 43%.²⁸ According to the study, surveyed executives "estimated that the whistleblowers saved their shareholders billions of dollars."

For instance, the public disclosure by Dr Jiang Yanyong²⁹, which revealed the gravity of the SARS virus to the public in 2003, is an example of whistleblowing that potentially saved millions of lives.

The Need for Protection

Whistleblowers often take great personal and professional risks in order to report wrongdoing. Around the world, they are routinely harassed, fired, arrested, sued, attacked or even killed for exposing misconduct, as they are seen as a risk to the company's image and credibility, and as a challenge to authority.

Whistleblower protection is essential to encourage the reporting of misconduct, fraud

and corruption. The risk of corruption is significantly heightened in environments where the reporting of wrongdoing is not supported or protected. This applies to both public and private sector environments, especially in cases of bribery. Protecting public sector whistleblowers facilitates the reporting of passive bribery, misuse of public funds, waste, fraud, etc whereas protecting private sector whistleblowers facilitates the reporting of active bribery and other corrupt acts committed by companies.

Providing effective protection for whistleblowers supports an open organisational culture where employees are not only aware of how to report but also have confidence in the reporting procedures. It also helps businesses prevent and detect bribery in commercial transactions.

Furthermore, companies may respond to those who report malpractices by attacking them in an effort to avoid negative publicity that may lead to erosion of public trust, loss of customer confidence, or investor support. This is made worse by a culture of silence, where whistleblowers are seen as disrupting elements and may be stigmatised as disloyal. In addition, leadership may also target whistleblowers in efforts to protect their interests in case the reported malpractice implicates them.³⁰

EXISTING FRAMEWORKS FOR WHISTLEBLOWER PROTECTION

The 1998 Recommendation on Improving Ethical Conduct in the Public Service (OECD, 1998) was the first soft law instrument to put in place a dedicated principle on whistleblower protection.

²⁸Why whistleblowing works. National Whistleblower Center. (2022b, October 24). <https://www.whistleblowers.org/why-whistleblowing-works/>

²⁹Ng, K. (2023, March 15). *Jiang Yanyong: Whistleblower doctor who exposed China's SARS cover-up dies*. BBC News. <https://www.bbc.com/news/world-asia-china-64960693>

³⁰Site homepage. OECD iLibrary. (n.d.-a). <https://www.oecd-ilibrary.org/>

After this, Whistleblower protection requirements have been introduced in the United Nations Convention against Corruption, the 2009 OECD Recommendation of the Council for Further Combating Bribery of Foreign Public Officials in International Business Transactions (Anti-Bribery Recommendation), the Council of Europe Civil and Criminal Law Conventions on Corruption, the Inter-American Convention against Corruption, and the African Union Convention on Preventing and Combating Corruption. Such provisions have strengthened the international legal framework for countries to establish effective whistleblower protection laws.³¹

UNCAC

The UN Convention against Corruption binds all of its signatory countries to consider legal provisions to protect people who report corruption-related offences from retaliation. Article 33 of the General Assembly resolution 58/4 of 31 October 2003, states “Each State Party shall consider incorporating into its domestic legal system appropriate measures to provide protection against any unjustified treatment for any person who reports in good faith and on reasonable grounds to the competent authorities any facts concerning offences established in accordance with this Convention.”³² Since 2010, whistleblower legislation has been passed in Australia, Belgium, Bosnia and Herzegovina, Greece, Hungary, India, Ireland, Italy, Jamaica, Luxembourg, Malta, Morocco, Peru, Slovenia,

South Korea, Uganda and the US. All of these countries have signed and ratified the UNCAC³³.

OECD

More OECD countries have put in place dedicated whistleblower protection laws in the past five years than in the previous quarter century. Of the 32 OECD countries that responded to the 2014 OECD Survey, 27 reported having a dedicated whistleblower protection law or legal provision(s) that calls for the protection of whistleblowers under certain circumstances (not always for reporting of corruption offences), with 13 having passed a dedicated law that protects public sector whistleblowers. Several countries, such as Hungary, Iceland, New Zealand, etc extend these laws to private sectors as well.³⁴

ENFORCEMENT MECHANISMS

Channels for Reporting

Whistleblowing legislation may refer to one or more channels by which protected disclosures can be made. These generally include internal disclosures, external disclosures to a designated body, and external disclosures to the public. The UK Public Interest Disclosure Act of 1998, for example, applies a ‘tiered’ approach whereby disclosures may be made to one of the following ‘tiers’ of persons:

1. Internal disclosures to employers or Ministers of the Crown.

³¹Existing Frameworks. OECD iLibrary. (n.d.-a). <https://www.oecd-ilibrary.org/>

³²Learn more. UNCAC Coalition. (n.d.). <https://uncaccoalition.org/learn-more/whistleblowing/>

³³UNCAC. UNCAC | The only legally binding anti-corruption instrument. (n.d.). <https://star.worldbank.org/focus-area/uncac>

³⁴Site homepage. OECD iLibrary. (n.d.-a). <https://www.oecd-ilibrary.org/docserver/9789264252639-4-en.pdf?expires=1729712408&id=id&accname=guest&checksum=E85008A52F5456F815F2A9F829BBDEB5>

2. Regulatory disclosures to prescribed bodies (e.g. the Financial Services Authority or Inland Revenue).
3. Wider disclosures to the police, media, Members of Parliament and non-prescribed regulators.

A number of G20 countries have also established whistleblower hotlines as a mechanism to facilitate the reporting of wrongdoing. These are particularly prevalent with the reporting of acts of corruption. Indonesia's Corruption Eradication Commission (KPK), for example, has established a designated whistleblowing website. A number of companies have also established hotlines for the reporting of corruption and other forms of misconduct or illegal behaviour within their organisations, particularly in response to the SOX Act and Dodd-Frank Act.

Use of Incentives

To encourage whistleblowing, some G20 countries have adopted rewards systems, including monetary rewards. In the US, for example, The Dodd-Frank Act also authorises the SEC to pay rewards to individuals who provide the Commission with original information that leads to successful SEC enforcement actions (and certain related actions). Rewards may range from 10-30 % of the funds recovered.

Enforcement Authorities

Whistleblower legislation could designate an independent body that is empowered to receive

and investigate complaints of retaliatory, discriminatory or disciplinary action taken against whistleblowers.³⁵

Korea's ACRC, for example, is empowered under the ACRC Act to launch an inquiry into claims of reprisals against whistleblowers who have reported corruption offences. On the contrary, Turkish law does not provide enough protections or provisions for whistleblowers, as there are no specific whistleblowing laws. Laws such as the Turkish Code of Obligations and Occupational Health and Safety Law do not offer adequate protection or insurance for the employee.³⁶

CHALLENGES

Anonymity

Nearly two-thirds of all whistleblowers prefer to remain anonymous because of the challenges they face. The main factor behind this decision is to avoid retaliation by their employers, as they can face termination, forced retirement, negative performance evaluation, social ostracism, and blacklisting from other jobs in their field. Another aspect of maintaining the whistleblower's identity is that in many cases, keeping the whistleblower's identity anonymous whilst conducting an investigation can prove to be difficult. Maintaining confidentiality has become even more difficult in today's day and age, due to breakthroughs in surveillance and security practices.³⁷

³⁵Site homepage. OECD iLibrary. (n.d.). <https://www.oecd-ilibrary.org/>

³⁶What is the false claims act?. National Whistleblower Center. (2021a, April 19). https://www.whistleblowers.org/protect-the-false-claims-act/?gad_source=1&gclid=CjwKCAjwyfe4BhAWEiwAkIL8sNF92XWVwqojn3CANKFovA12fz_8GEV1MgqrCtjifsnZeEV21MYGJhoC8asQAvD_BwE

³⁷Whistleblower confidentiality. National Whistleblower Center. (2022, December 1). <https://www.whistleblowers.org/whistleblower-confidentiality/>

Protection

Protection against retaliation from companies is also a major challenge faced by whistleblowers, as they can be subject to punishments that range from termination to assassination. This fear of retaliation is a major factor that deters whistleblowing. The decision to expose misconduct can come with personal sacrifices, as the whistleblower may be subjected to discrimination and isolation from co-workers. This may cause psychological or mental stress to the whistleblower. OSHA (Occupational Safety and Health Administration) and the SEC (Securities and Exchange Commission) are responsible for enforcing these laws against retaliation.³⁸

CASE STUDIES

Edward Snowden

Edward Snowden was an American intelligence contractor, famously known for his whistleblowing activities, revealing the extensive secret information programs conducted by the NSA. In 2013, Snowden revealed the existence of PRISM, a data mining program that enabled the NSA and FBI to monitor American citizens directly. This brought to light the extent to which privacy was violated. However, Snowden was charged with espionage by the United States government, which forced Edward to seek asylum in the Russian Federation. The Snowden leaks caused a wave of controversy and prompted the United States government to form an independent panel to investigate U.S. government surveillance programs. The leaks allegedly endangered national security disclosed classified information and brought attention to

whistleblower protections concerning identity confidentiality, especially in the public sector. Despite this, Snowden's actions are still deemed illegal in the United States, under charges of espionage for leaking state secrets. The Snowden leaks also became a hot ground for debates, as people debate over the importance of state secrets and individual privacy.³⁹



Edward Snowden

Source: Britannica

Boeing

In 2019, John Baret, who had worked for Boeing for more than thirty years at that point, told the BBC that under-pressure workers deliberately fitted aeroplane parts with sub-standard aeroplane parts. After retiring in 2017, Baret took legal action against Boeing, accusing the company of denigrating his character and hampering his career. He was found dead in March 2024, allegedly due to self-inflicted wounds. His death was met with worldwide uproar, serving as a grim reminder of corporate negligence and unethical practices, as Baret was gathering evidence in a whistleblower lawsuit in the days prior to his death. His death prompted

³⁸Kenton, W. (n.d.). *What is a whistleblower? protections, law, importance, and example*. Investopedia.
<https://www.investopedia.com/terms/w/whistleblower.asp>

³⁹Encyclopædia Britannica, inc. (2024, October 21). *Edward Snowden*. Encyclopædia Britannica.
<https://www.britannica.com/biography/Edward-Snowden>

Boeing and their key supplier Spirit Aerosystems to come under intense scrutiny.⁴⁰

Enron Scandal

As competition steadily increased in the energy market, Enron Corporation's profits began to shrink. Because of pressure from shareholders, the company started to participate in increasingly questionable accounting practices. Eventually, these practices of fraudulent accounting were revealed in 2001, by Sherron Watkins and Cynthia Cooper, who brought the scandal to light. Accounting firm Arthur Anderson LLC, the firm responsible for audits and consultation for the company, was found guilty of obstruction of justice. The scandal eventually led to Enron declaring bankruptcy and encouraged companies to be more transparent about their financial records.⁴¹

COUNTRY STANCES

EU Whistleblowing Directives

Admittedly, in order to improve the benchmark for the efficiency of organisations, encouraging an open and transparent infrastructure for organisations was vital. Thereby in order to effectuate a positive front, for the sole purpose of the safety of the Whistleblowers, the European Union (EU) launched a directive, which dates back to 16 December 2019.

The strategic priorities for this directive evinced the need to improve law enforcement. This therefore consequently reinforces the strength of reporting channels. This engages them to report

freely without any fear of retaliation. Understanding the need for secure encrypted channels to report safeguards the reputation of the whistleblowers. Indubitably, this enables them to confidently raise their voice in matters of utmost need, without the fear of retaliation, and preserve their anonymity and social identity. Furthermore, the directives urge to improve the quality of monitoring systems in order to mitigate any fault in the framework or any misconduct in the regulatory forums.

Additionally, the EU directives also support job applicants, former employees, and journalists. Retaliation from whistleblowers comes in innumerable forms, which the EU directives cater to. This caters to dismissal, degradation, and other forms of discrimination. The protection under the EU directives only entails its respective EU laws, which include tax fraud, money laundering, public procurement offences, public health and consumer data protection. The EU allows the whistleblower to exercise the right to raise the appeal within the company, to an supervisory body. In case of no substantial action being taken regarding the same, if felt apt, then the EU gives protection to concerns expressed publicly with reason.

In accordance with all these directives, it credits the EU with encouraging its whistleblowers to take appropriate action regarding any differences or malpractice present in any company or organisation.

US

Whistleblowers play a very integral role in the US government to keep the country's social identity,

⁴⁰Leggett, T. (2024, March 11). *Boeing whistleblower John Barnett found dead in US*. BBC News. <https://www.bbc.com/news/business-68534703>

⁴¹Encyclopædia Britannica, inc. (2024b, October 24). *Enron scandal*. Encyclopædia Britannica. <https://www.britannica.com/event/Enron-scandal>

and its government, honest, pure and coherent. The protection offered by the federal law is structured and is classified upon the individual. They are enlisted as mentioned; federal employee, employee of a federal contractor, subcontractor, grantee, or subgrantee. The federal law effectuates and exercises protection for all federal employees, or its applicants, from any retaliation that they face from the employment or making protected disclosures. This comes under the Whistleblower Protection Act (WPA). Essentially the WPA also charges penalties for supervisors who engage in any retaliation against their employees.

Non-federal employees (contractors & subcontractors) are individuals who are relatively in a position to spot fraud, abuse, or any immoral misconduct. The WPA recognises the integral role of such employees in unearthing such frauds. Therefore, in order to protect these employees from any retaliation, the WPA grants them protection for making protected disclosures. These given protected disclosures come under a Non-Disclosure Agreement (NDA).

CONCLUSION

The need for Whistleblowers is an important aspect of the moral cultures exhibited by

companies and organisations. The omnipotence of the Whistleblower laws worldwide articulates the importance of them, to preserve the cultural integrity of a workplace.

These laws reinforce lawful practices and ensure a legally sound environment for all employees and employers. A comprehensive approach to this signifies the need to bridge the gaps in policies. Countries worldwide battle corruption, albeit to address such unlawful practices, the conference advocates to bring reforms and thereby reiterate the framework to its optimal level. This thereby urges all the stakeholders concerned to step up, and thus provide a safe platform for them to raise their voice.

Improving the security of reporting systems and preserving the anonymity of these employees adds to the incentives.

Crediting to the conference's agenda, we strive to reassess, reiterate, and implement Whistleblower laws across the globe, improving accountability, stability and trust in organisations worldwide.